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Date of Form 1507
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Sheet 1
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Anmelde-Nr:
Application No: 10 761 948.8
Demande n°:

EP 2416793

25-7-13

The examination is being carried out on the **following application documents**

Description, Pages

1-29 as published

Claims, Numbers

1-15 filed in electronic form on 30-05-2012

Drawings, Sheets

1/6-6/6 as published

The following documents (D) are referred to in this communication; the numbering will be adhered to in the rest of the procedure:

- D1 LEE CHUN-LIN ET AL: "A simple and rapid approach for removing citrinin while retaining monacolin K in red mold rice",
JOURNAL OF AGRICULTURAL AND FOOD CHEMISTRY, AMERICAN
CHEMICAL SOCIETY, US,
vol. 55, no. 26, 26 December 2007 (2007-12-26), pages 11101-11108,
XP008125184,
ISSN: 0021-8561, DOI: 10.1021/JF071640P
[retrieved on 2007-11-30]
- D2 YII-LIH LIN ET AL: "Biologically active components and nutraceuticals in the Monascus-fermented rice: a review",
APPLIED MICROBIOLOGY AND BIOTECHNOLOGY, SPRINGER,
BERLIN, DE,
vol. 77, no. 5, 22 November 2007 (2007-11-22), pages 965-973,
XP019560781,
ISSN: 1432-0614
- D3 HONG M Y ET AL: "Anticancer effects of Chinese red yeast rice versus monacolin K alone on colon cancer cells",
JOURNAL OF NUTRITIONAL BIOCHEMISTRY, BUTTERWORTH
PUBLISHERS. STONEHAM, GB,

vol. 19, no. 7, 1 July 2008 (2008-07-01), pages 448-458, XP022710090,
ISSN: 0955-2863, DOI: 10.1016/J.JNUTBIO.2007.05.012
[retrieved on 2008-06-09]

D4 WAI TO FUNG ET AL: "Assessment of Extracts from Red Yeast Rice for
Herb-Drug Interaction by in-vitro and in-vivo assays",
SCIENTIFIC REPORTS,
vol. 2, 2 March 2012 (2012-03-02), XP055071670,
DOI: 10.1038/srep00298

D1 and D2 have been cited in the international search report as D5 and D6
respectively. If not indicated otherwise, the relevant passages are those mentioned in
the European search report.

Art. 115

The Examining Division notes that third party observations have been filed with letter
of 19.10.2012, received on 01.11.2012.

The Applicant is hereby invited to comment on these exhibits.

Art. 123

The amendments filed in electronic form on 30.05.2012 meet the requirements of
Art. 123(2) EPC. Basis for the amendments can be found in the claims and in the
description as originally filed as indicated in applicants letter.

Art. 83

Claims 1-3 are directed to certain plant extracts, wherein said extracts are defined
only in terms of their desired content of statins and unwanted polar compounds. The
same applies for the method **claims 6 and 7**.

In this case undue experimentation would be needed in order to find out which plants
comprise statins, which polar compounds are removed and how this effect is to be
achieved.

Therefore, the requirements of Article 83 (and Article 84 EPC, see below) are not met.

Art. 84

The application does not meet the requirements of Article 84 EPC, because **claims 1-15** are not clear.

The term "substantially free of" used in **claim 1** is vague and unclear and leaves the reader in doubt as to the meaning of the technical features to which it refers, thereby rendering the definition of the subject-matter of said claims unclear (Article 84 EPC).

The same applies for the term "about" used in **claim 5**.

Claims 1-15 do not meet the requirements of Article 84 EPC in that the matter for which protection is sought is not defined. The claims attempt to define the subject-matter in terms of the result to be achieved ("comprising one or more statins", "being free of polar compounds", "wherein said polar compounds affect pharmacokinetics of a drug in a subject", "comprising the step of removing one or more polar compounds", etc.). Such a definition is only allowable under the conditions elaborated in the Guidelines F-IV, 4.10. In this instance, however, such a formulation is not allowable because it appears possible to define the subject-matter in more concrete terms, viz. in terms of which plants comprise statins, which polar compounds are removed and how the effect is to be achieved.

Furthermore it is clear from the description on page 21, lines 11-19 that the feature of the microbial fermentation is essential to the definition of the invention.

Since independent **claims 1, 6 and 12-15** do not contain this feature said claims do not meet the requirement following from Article 84 EPC, taken in combination with Rule 43(1) and (3) EPC, that any independent claim must contain all the technical features essential to the definition of the invention.

The subject-matter described in example 2 of the present application does not fall within the scope of the claims. A 0.1M sodium acetate solution has a pH of 8,9 - whereas according to the process of present **claim 8** a pH of 5-7 is required for the step of removing citrinin and other toxins. This inconsistency between the claims and the description leads to doubt concerning the matter for which protection is sought, thereby rendering the claims unclear (Article 84 EPC).

Present **claims 5 and 10** are unclear. Buckwheat does not belong to Poaceae, *Pleurotus* is a fungus and not a plant.

The above mentioned lack of clarity notwithstanding, the following comments are made with respect to novelty and inventive step. However a complete analysis of novelty and inventive step will be made when a clear set of claims will be available.

Art. 54

The present application does not meet the requirements of Article 52(1) EPC, because the subject-matter of **claims 1-15** is not new in the sense of Article 54(1) and (2) EPC.

The influence on pharmacokinetics is an inherent property of citrinin and can neither confer novelty to a product (see present **claim 2**), nor to a process claim (see present **claim 7**).

Monacolin rich fractions/extracts or even lovastatin per se are also considered as "plant extracts comprising one or more statins and being substantially free of polar compounds" and therefore as novelty destroying for present **claims 1-5 and 12-15**.

D1 discloses a comparison of different methods for the removal of citrinin from red yeast rice. The use of sodium acetate has been tested as well as the use of phosphate. The influence of the pH (alkaline or acidic conditions for removing citrinin) has also been discussed in D1.

The subject-matter of **claims 1-15** is therefore not new (Article 54(1) and (2) EPC).

D2 provides an overview over the active compounds (Monacolins) as well as over the unwanted toxic components (citrinin) in red yeast rice extracts.

The subject-matter of **claims 1-15** is therefore not new (Article 54(1) and (2) EPC).

D3 discloses the preparation of a Monacolin rich fraction of red yeast rice extract.

The subject-matter of **claims 1-15** is therefore not new (Article 54(1) and (2) EPC).

Art. 56

With respect to the subject - matter of **claims 1-15** the applicant's attention is drawn to the fact that even if novelty could be established over the above - cited prior art it is at present not clear wherein an inventive step may reside.

When filing amended claims the applicant is requested to use the problem-solution-approach by defining the closest prior art, the difference to the closest prior art and to identify the technical effect which is based on this difference.

The applicant should at the same time bring the description into conformity with the amended claims. Care should be taken during revision, especially of the introductory portion and any statements of problem or advantage, not to add subject-matter which extends beyond the content of the application as originally filed (Article 123(2) EPC).

In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the applicant is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, and to indicate the passages of the application as filed on which these amendments are based.

If the applicant regards it as appropriate these indications could be submitted additionally in handwritten form on a copy of the relevant parts of the application as filed.